

# Attachment 4



Gavin Newsom  
GOVERNOR  
Toks Omishakin  
SECRETARY  
Ian Choudri  
CHIEF EXECUTIVE OFFICER



April 29, 2026

SENT VIA EMAIL AND OVERNIGHT EXPRESS MAIL

Andrew Bailey  
California High Speed Partners  
135 S State College Blvd  
Brea, CA 92821  
[andrew.bailey@colasrail.com](mailto:andrew.bailey@colasrail.com)

*Re: Request for Proposals (RFP) No. HSR25-89, Track and Systems Construction Contract, Results of Evaluation*

Dear Mr. Bailey,

Regrettably, this notice is being sent to inform the California High Speed Partners that, based on the analysis herein, the proposal submitted by your firm in response to HSR25-89 was deemed non-responsive. As a result, the proposal was not advanced out of the initial stage of the Authority's evaluation process, in accordance with Section 7 of the Instructions to Proposers.

## Background

California High Speed Partners (CHSP), which is comprised of Colas Rail Inc. and RailWorks Track Services LLC, timely submitted its proposal to the Request for Proposals HSR25-89 for the Track and Systems Construction Contract (Proposal) to the California High-Speed Authority (Authority) on April 9, 2026.

The Authority immediately commenced evaluation of the Proposal. On April 16, 2026, the Authority provided you with Request for Clarifications No. 1. In this letter, the Authority requested that you confirm the anticipated approval date for Simon D'Cruz's California Professional Engineer License. In addition, the Authority asked you to confirm if Sanchay Singhal, your proposed Design Oversight Manager, is a licensed California Professional Engineer. On April 17, 2026, your response indicated that licensure is anticipated by December 31, 2026 for Simon D'Cruz and you also indicated that Sanchay Singhal is not currently licensed as a California Professional Engineer, but based on his status as a Chartered Engineer (CEng), he is eligible to pursue licensure through the applicable transfer and evaluation pathways, with an anticipated completion date of March 2027.

## **Relevant Procurement Requirements**

Pursuant to the requirements of the Instructions to Proposers (ITP) section 6.6.2(f)(4), the Design Oversight Manager shall be a registered professional engineer in the State of California.

Furthermore, pursuant to the requirements of ITP section 6.6.2(e), "Where the Work requires a professional license, at least one Key Personnel in responsible charge of the Work (subject to the Professional Engineers Act) shall be a California registered Professional Engineer in good standing by the date of Contract execution". The Authority anticipates Contract execution in June 2026, as indicated in the response provided by the Authority in Questions and Answers Round 10, Proposer Question 618. Based on your provided dates, you will not have a California registered Professional Engineer within your Key Personnel by the date of Contract execution.

Additionally, ITP Attachment A, Minimum Qualifications Checklist, requires that the Technical Proposal identify at least one Key Personnel who is a California registered Professional Engineer. A California registered Professional Engineer was not put forward within your Key Personnel in the proposal documents. As such, your proposal did not meet the minimum qualifications listed in the ITP, Attachment A.

## **Authority Determination**

CHSP's Proposal is found to be non-responsive for failure to meet the requirements of RFP No. HSR25-89 Sections 6.6.2(e) and (f)(4), 7.3, and Attachment A of the Instructions to Proposers. These deviations from the listed requirements are material deviations that cannot be waived by the Authority.

As such, pursuant to Section 7.3 of the ITP, CHSP was excluded from further consideration in the RFP evaluation process.

Finally, pursuant to the terms of the RFP and Stipend Agreement, CHSP is not eligible to receive a stipend payment, which is conditioned upon contractor's full conformance with all of the required elements of the RFP. (See Form Q: Stipend Agreement, Exhibit A, Sections A and B)

We sincerely regret this result and wish to commend you and CHSP for your hard work and participation in the RFP process. Despite this setback, on behalf of the Authority, we hope we can look forward to your team's participation in future procurements.

Sincerely,



Emily Morrison  
Chairperson, Evaluation Selection Committee  
California High-Speed Rail Authority